

Court No. - 21

Case :- WRIT - C No. - 56701 of 2016

Petitioner :- M/S Meher Chandra Sewal Das
Rais Mill and another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ram Om Vikram
Singh Chauh

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

By this writ petition, the petitioners have prayed for quashing the impugned notice dated 30.9.2016 wherein an additional electricity dues of Rs.7,73,525/- has been imposed on the petitioners and for direction commanding the respondents to restore the electricity connection.

The petitioner no.2 claims to be owner & proprietor of M/s Meher Chandra Sewal Das Rice Mill situated at Ussahar road, old Bharthna, District Etawah. The petitioner applied for and was granted an electric connection of 63 KV in the month of September, 2012. He deposited Rs.1000/- as connection fee. The petitioner started running the rice mill in question and continuously deposited the electricity dues as per electricity bills issued by the respondents. By the impugned notice dated 30.9.2016, the Executive Engineer (Competent Authority), Electricity Distribution Division-II, Dakshinanchal Vidyut Vitran Nigam Limited, Etawah imposed an additional dues of Rs.7,73,525/-.

Shri Baleshwar Chaturvedi, learned counsel appearing for the Dakshinanchal Vidyut Vitran Nigam Limited states that the writ petition is not maintainable as alternative remedy under Section 127 of the Electricity Act is available to the petitioner against the impugned notice.

The Electricity Supply Code, 2005 is a self-contained Act wherein detailed procedure is given in Clause 6.8 (a) (i), (ii), (iv), (v) for making spot inspection and in case on the inspection of the premises by the Assessing Officer, it is found that some irregularities constituting unauthorised use of electricity have been committed, the Assessing Officer shall prepare a report at the site giving details thereof and will handover the copy of such report to the consumer or his representative. The emphasis is that prima facie conclusion recorded by the Assessing Officer should be communicated to the consumer. Clause 6.8(b) (ii) provides that the notice shall require the consumer to give his objections against the charges and provisional assessment. Clause 6.8(c)(i) provides that opportunity of personal hearing shall also be given and thereafter the Assessing Officer shall pass a speaking order specifically disclosing whether unauthorised use of energy is established or not and where it is so determined the quantum of amount which the consumer has to pay i.e. assessment shall be made by him. Thus, Clause 6.8 provides a detailed procedure in which the assessment would have to be made by the Assessing Officer.

In this view of the matter, since equally efficacious alternative remedy is available to the petitioner, we **dispose of** the writ petition with a direction to the petitioner to deposit Rs.2,00,000/- within two weeks from today, and approach concerned authorities raising all the objections taken in the writ petition in the form of a representation along with a copy of the writ petition. On deposit of token money, the electricity connection shall be restored and the concerned authorities shall decide the representation by passing a reasoned order after affording opportunity of hearing to the petitioner as to whether unauthorised use of electricity by the petitioner is established or not, and if the unauthorised use of electricity

is found established, the concerned authority shall pass a final assessment order. The final assessment shall be made for entire period during which such unauthorised use of electricity has taken place subject to limitation provided under Clause 6.8(c)(iii) of the Electricity Code, 2005. If aggrieved from the final order, the petitioner may prefer an appeal within 30 days of the order, as provided under Section 127 read with Clause 6.8(d) of U.P. Electricity Supply Code, 2005.

Order Date :- 30.11.2016

RKP